

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 12, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**AVIS RENT A CAR SYSTEM, LLC vs. ROBIN EVANS
Case No. CL24-01058**

Plaintiff's Motion to Enforce Settlement Agreement and Enter Judgment

TENTATIVE RULING

The unopposed motion is GRANTED.

**JOHNNY MCFARLAND, JR. vs. FAIRFIELD POLICE DEPARTMENT
Case No. CU23-00406**

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant CITY OF FAIRFIELD (erroneously named as FAIRFIELD POLICE DEPARTMENT) moves for summary judgment in its favor against Plaintiff JOHNNY MCFARLAND JR.'s complaint alleging causes of action for civil rights violations. Summarized, Plaintiff's complaint alleges that on September 28, 2022 Plaintiff was the victim of a hit and run vehicle incident. Fairfield Police Department Officer Sarah Badr, Defendant's employee, responded to investigate the scene. As Plaintiff delivered statements on the incident to her Officer Badr allegedly twice pressed her body against Plaintiff while pretending to take notes, despite being told that Plaintiff's body hurt from the collision.

On April 3, 2026 this matter previously came on for hearing. At that time the court advised the parties of apparent clerical errors in submitted evidence. Plaintiff was permitted to resubmit his declaration in support of his opposition; Defendant was permitted to resubmit purported body camera footage from Officer Badr. The court has received and has now reviewed the requested evidence from both parties.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) However, a party may not utilize his own discovery responses as evidence. (Code Civ. Proc., § 2030.250; *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., §437c, subd. (p)(2).)

Judicial Notice. Matters subject to judicial notice may support a motion for summary judgment or adjudication. (Code Civ. Proc., § 437c, subds. (b)(1), (f)(2).) The court takes judicial notice of two complaints Plaintiff filed in other cases, one against EconoLodge and one against Defendant, as well as the order granting Defendant's special motion to strike in that latter case, as records of a court of this state. (Evid. Code, § 452, subd. (d).)

Analysis. Plaintiff presents nineteen discernable causes of action. The first fifteen are all based on Officer Badr's alleged aggression towards and touching of Plaintiff and

state violations of criminal statutes or civil rights protections. To the extent Plaintiff's first nine causes of action state violations of criminal statutes, Plaintiff lacks standing to enforce those violations, as he is a private citizen and not a federal or state prosecutor. Further, all fifteen of these claims fail because Defendant's undisputed material facts establish that Officer Badr did not get inappropriately close to Plaintiff during her investigation, nor did she touch him. (Defendant's Undisputed Material Facts #10.) Review of the body camera footage of the incident confirms Defendant's undisputed material facts.

Plaintiff's remaining four causes of action assert deprivation of rights related to public accommodations and federally funded programs. These causes of action appear to concern a dispute Plaintiff has with EconoLodge hotels and do not implicate Defendant. Defendant did not deprive Plaintiff of rights related to public accommodations or federally funded programs.

Defendant establishes Plaintiff's inability to prove any of his causes of action. Plaintiff raises no triable issue of material fact in response. Plaintiff's evidence in response consists of letters and declarations from Plaintiff stating Officer Badr's alleged misconduct in court documents and communications with state and federal agencies. The court finds that Plaintiff's evidence does not contradict Defendant's video evidence of the investigation.

Conclusion. Defendant's motion for summary judgment is granted.

MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.
Case No. CU24-06535

Motion by Defendants to Strike Plaintiffs First Amended Complaint

TENTATIVE RULING

C.C.P. §436(a) authorizes the court to "[s]trike out any irrelevant, false or improper matter inserted in any pleading" on a noticed motion.

C.C.P. §436(b) authorizes the court to "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

A motion to strike thus can be filed to strike an entire pleading, or just parts of it, the latter like a scalpel to remove specific paragraphs, sentences, phrases or words. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:156, p. 77 ["a motion to strike can be used to attack . . . even single words or phrases"].

If filed to strike just parts of a complaint, CRC 3.1322(a) requires a motion to strike a part of a complaint to “quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense”.

Defendants did not identify any portions of Plaintiff’s first amended complaint as intended targets of their motion to strike. Instead, they sought to strike the entirety of the first amended complaint.

Motions to strike the entirety of a pleading are typically filed against a complaint filed late, missing a necessary signature or certification, or without having obtained necessary leave of court. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:174, pp. 80-81.

Defendants argued that the entire first amended complaint fails to constitute “a statement of the facts constituting the cause of action, in ordinary and concise language”, as required by C.C.P. §425.10(a)(1).

Plaintiff’s first amended complaint is anything but concise. However, it does contain in clear language allegations that Plaintiff never agreed to pay 27.2% annual interest on the financed part of the vehicle purchase, and that his signature on the contract calling for such interest was forged. The court has already found on the demurrer that this states a viable cause of action (not for “fraud”, as identified in the first amended complaint, but for forgery).

While unnecessary allegations can be stricken from a complaint, “matter that is essential to a cause of action should not be struck and it is error to do so.” Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281.

The court therefore denies Defendants’ motion to strike the entirety of Plaintiff’s first amended complaint.

Defendants have 10 days leave to file an answer to the first amended complaint.

MATTHEW NITTINGER; ET AL. vs. DANIEL WAYNE SAUVAGEAU; ET AL.
Case No. CU25-00844

Defendants K. HENGL, R. HENGL, and SUPERIOR CUSTOM CONSTRUCTION,
LLC’s Motion for Leave to File Cross Complaint

TENTATIVE RULING

The motion for leave to file cross complaint filed by Defendant’s K. Hengl, R. Hengl, and Superior Custom Construction, LLC is GRANTED.

Moving Defendants have sufficiently complied with Rule of Court 3.1110. The NOTICE also states: "A copy of the [Proposed] Cross-Complaint is attached to the declaration of Trevor A. White as Exhibit 1."

While the proposed cross complaint is actually Exhibit 2 to the White declaration, the proposed cross complaint identifies all cross defendants at page 2, lines 1-6.

JPMORGAN CHASE BANK N.A. vs. GIBRAN K. POPYON
Case No. CU25-04202

Plaintiff's Motion to Deem Matters Admitted

TENTATIVE RULING

The Parties are to appear.

At the hearing, the Court's tentative ruling is to grant Plaintiff's unopposed motion to deem matters admitted. Each of the requests in the requests for admissions is deemed to be admitted.

CONSUMERS CREDIT UNION vs. MONIQUE ESTHER ROBINSON
Case No. CU25-11613

Defendant's Motion to Set Aside Default

TENTATIVE RULING

Defendant's unopposed motion to set aside and vacate default is GRANTED.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

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